

106	Bohinski vs. Workway, Inc. 2025-01487765	Motion to Compel Arbitration Defendant Workway, Inc.’s Motion to Compel Arbitration of Plaintiff’s Individual Claims, Dismiss Class Action Claims, and for Stay or Dismissal of Proceedings filed on 2/19/2026 at ROA #84 is GRANTED. On 6/5/2025, Plaintiff Velia Bohinski commenced this action against Defendants Workway, Inc. and Commercial Bank of California (“CBC” or “CBOC”) by filing a complaint, alleging 10 causes of action for various Labor Code violations and unfair competition. (ROA #2.) The complaint specifically includes a section on “Joint Liability Allegations” and alleges, inter alia, that at “all the times mentioned herein, each of the Defendants was the agent, principal, employee, employer, representative, joint venture or co-conspirator of each of the other defendants . . .” and that “there exists such a unity of interest and ownership between Defendants, and each of them, that their individuality and separateness have ceased to exist.” (<i>Id.</i> at ¶¶ 6, 9.) Accordingly, Plaintiff alleges that “Defendants, and each of them, are joint employers.” (<i>Id.</i> at ¶ 11.) Indeed, the complaint’s allegations of wrongdoing do not differentiate between Workway and CBC and generally alleges “Defendants” engaged in all alleged acts. (See <i>id.</i>, passim.) On 8/28/2025, CBC filed a motion to compel arbitration of Plaintiff’s individual claims, dismiss the class claims, and stay the action pending completion of the individual arbitration. (ROA #38.) CBC’s motion was based on a February 12, 2025 arbitration agreement executed by CBC and Plaintiff. (ROA #36, Exh. A.) On 1/22/2026, the Court granted the motion, including staying Plaintiff’s case against CBC pending the completion of the arbitration. (ROA #71.) In the meantime, on 9/12/2025, Workway filed a separate motion to compel arbitration of Plaintiff’s individual claims, dismiss or strike Plaintiff’s class action claims, and stay or dismiss or the present action until completion of arbitration (“First Motion”). (ROA #47.) Workway’s First Motion was based only on an arbitration agreement executed by Workway on 12/4/2023 and by Plaintiff on 12/6/2023. (ROA #45, Exh. A.) On 1/29/2026, the Court denied Workway’s First Motion because the agreement is procedurally and substantively unconscionable, and the unconscionable provisions are not severable. (ROA #74.) On 2/19/2026, Workway filed the instant, second motion to compel arbitration—seeking the same relief but based on the arbitration agreement between CBC and Plaintiff, which Workway contends is applicable to Workway under the theory of equitable estoppel. (ROA #84.) 1. Code of Civil Procedure (CCP) Section 1008 Plaintiff contends that Workway’s instant motion is an improper renewed motion under Code of Civil Procedure (CCP) section 1008 because it seeks the same relief (i.e., compelling Plaintiff to arbitrate her claims against Workway) as Workway’s First Motion, which the Court heard and denied on 1/29/2026. The only difference is that the First Motion was based on Workway’s own arbitration agreement with Plaintiff, while the instant,
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second motion is based on CBC’s arbitration agreement with Plaintiff under the theory of equitable estoppel.

“Courts have construed section 1008 to require a party filing an application for . . . a renewed application to show diligence with a satisfactory explanation for not having presented the new or different information earlier.” (*Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830, 839.) “Section 1008’s purpose is to conserve judicial resources by constraining litigants who would endlessly bring the same motions over and over” (*Id.*, internal quotes omitted; see also *Le Francois v. Goel* (2005) 35 Cal.App.4th 1094, 1104 [Section 1008 “limit[s] the parties’ ability to file repetitive motions”].)

However, when a court “denie[s] the first motion *without* prejudice, Code of Civil Procedure section 1008 is inapplicable” because doing so “indicate[s] the court] wanted to reconsider the . . . issue,” as “[d]enial of a motion without prejudice implied invites the moving party to renew the motion at a later date.” (*Farber v. Bay View Terrace Homeowners Assn.* (2006) 141 Cal.App.4th 1007, 1015.) Indeed, although CCP section 1008 “prohibits a party from filing repetitive motions for the same relief, . . . a court may, on its own motion, reconsider a prior interim ruling it believes to be mistaken.” (*Id.*, citing *Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1107-1108.) In *Farber*, the appellate court held that “the trial court acted within its powers when, essentially on its own motion, it reconsidered” a previous motion by denying it without prejudice and “with, in effect, leave to renew it” rather than continuing the first motion. (*Id.*)

Here, while the Court’s minute order issued on 1/29/2026 after the hearing on Workway’s First Motion does not specify that the denial of that motion was “without prejudice,” Workway represents that at the hearing on 1/29/2026, “the Court specifically stated in ruling on its original motion that Defendant may file a new motion on the basis of CBOC’s enforceable arbitration agreement.” (ROA #99, Reply, at p. 4.) Workway, who was ordered to give notice of the ruling, then served and filed on 1/29/2026 a notice of ruling specifying that the Court’s denial of Workway’s First Motion was “*without prejudice*.” (ROA #73, emphasis original.) Plaintiff has not filed any objection to Workway’s notice of ruling.

Thus, given that the Court’s denial of Workway’s First Motion was without prejudice to Workway filing a new motion on the basis of CBC’s arbitration agreement (as opposed to Workway’s own arbitration agreement with Plaintiff, which was the basis for Workway’s First Motion), the instant second motion is not an improper renewed motion under CCP section 1008.

2. California Rules of Court (CRC), Rule 3.1330

Plaintiff also contends that Workway’s instant motion should be denied because it fails to comply with CRC, rule 3.1330, which requires motions to compel arbitration to “state, in addition to other required allegations, the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must be stated verbatim or a copy must be

physically or electronically attached to the petition and incorporated by reference.”

This argument lacks merit because Workway’s instant motion is supported by Workway’s counsel’s declaration, which attaches a copy of CBC’s motion to compel arbitration, which, in turn, includes quotations from CBC’s arbitration agreement with Plaintiff. (ROA #82, ¶¶ 4-5, Exh. B.)

3. Equitable Estoppel

The crux of Workway’s instant motion contends that because Plaintiff’s complaint alleges Workway’s and CBC’s joint liability as joint employers, Plaintiff’s claims against Workway are inextricably linked to her employment with CBC, which, in turn, was subject to a valid arbitration agreement between CBC and Plaintiff, and thus, equitable estoppel requires the Court to also compel arbitration of Plaintiff’s claims as to Workway pursuant to the CBC arbitration agreement.

This contention is directly supported by *Gonzalez v. Nowhere Beverly Hills LLC* (2nd Dist., Div. 1, 2024) 107 Cal.App.5th 111 and *Garcia v. Pexco, LLC* (4th Dist., Div. 3, 2017) 11 Cal.App.5th 782, which are cited by Workway in its motion. However, the correctness *Garcia* has been questioned, including by *Soltero v. Precise Distribution, Inc.* (4th Dist., Div. 1, 2024) 102 Cal.App.5th 887.) Accordingly, Plaintiff contends that this Court should follow *Soltero* instead of *Gonzalez* and *Garcia*.

In *Garcia*, a plaintiff-employee filed a complaint against both the staffing agency and the client-employer, alleging that they were “joint employers.” (*Garcia, supra*, 11 Cal.App.5th at pp. 784-785, 788.) The trial court granted both defendants’ motion to compel arbitration under the arbitration agreement between plaintiff and the signatory staffing agency. (*Id.* at p. 785.) Plaintiff appealed the granting of the motion as to the non-signatory client-employer. (*Id.*) The Fourth District, Division 3 affirmed, holding:

[A]ll of [plaintiff’s] claims are intimately founded in and intertwined with his employment relationship with [the signatory staffing agency defendant], which is governed by the employment agreement compelling arbitration. [Plaintiff] cannot avoid his obligation arising out of his employment relationship by framing his claims as merely statutory. On these facts, it is inequitable for the arbitration about [Plaintiff’s] assignment with [the client-employer defendant] to proceed with [the staffing agency], while preventing [the client-employer] from participating. This is because [plaintiff’s] claims against [the client-employer] are rooted in his employment relationship with [the staffing agency], and the governing arbitration agreement expressly includes statutory wage and hour claims. [Plaintiff] does not distinguish between [defendants] in any way. All of [plaintiff’s] claims are based on the same facts alleged against [the staffing agency]. [Plaintiff] cannot attempt to link [the client-employer] to [the staffing agency] to hold it liable for alleged wage and hour claims, while at the same time arguing the arbitration

provision only applies to [the staffing agency] and not [the client-employer]. [Plaintiff] agreed to arbitrate his wage and hour claims against his employer, and Garcia alleges [defendants] were his joint employers. Because the arbitration agreement controls [plaintiff]'s employment, he is equitably estopped from refusing to arbitrate his claims with [the non-signatory client-employer].

(*Id.* at pp. 787.)

As the Fourth District, Division 1 observed in *Soltero*, “[s]ince the *Garcia* decision, several federal district courts have questioned whether it correctly applied California’s equitable estoppel doctrine.” (*Soltero, supra*, 102 Cal.App.5th at p. 894.) In *Soltero*, the court held that “*Garcia* misapplied California law on this issue.” (*Id.* at p. 895.) The *Soltero* court reasoned as follows, in relevant part:

First, the court relied heavily on the fact that the arbitration clause applied to claims of Labor Code violations. Under the equitable estoppel doctrine, however, a nonsignatory defendant cannot compel arbitration merely because the scope of the arbitration agreement extends to the types of claims asserted by the plaintiff. Rather, the critical question is whether the plaintiff’s claims against the nonsignatory defendant actually rely on the terms of the contract containing the arbitration clause. If so, the plaintiff cannot avoid the arbitration clause. If not, the nonsignatory defendant cannot compel arbitration under the equitable estoppel doctrine—even if the plaintiff is asserting claims of a type that would otherwise fall within the scope of the arbitration agreement if asserted against a signatory defendant.

Second, *Garcia* erred by relying on the fact that the Labor Code claims against the nonsignatory defendant “presumed the existence of the employment agreement with the signatory defendant.” As the *Goldman [v. KPMG, LLP]* (2009) 173 Cal.App.4th 209, 231] court explained, it is not enough that the plaintiff’s complaint presumes the existence of a contract that contains an arbitration clause. In this context, “‘presum[ing] the existence of’ an agreement is not a stand-alone principle, but merely an elaboration of the underlying principle, stated in all the cases: actual reliance on the terms of the agreement to impose liability on the nonsignatory. For example, in the *Boucher [v. Alliance Title Co., Inc.]* (2005) 127 Cal.App.4th 262, 265-266] case cited by *Garcia*, the plaintiff’s claims against his employer’s successor did not just presume the existence of his employment contract containing the arbitration agreement. Rather, the plaintiff actually relied on the terms of his employment contract in suing the nonsignatory successor employer, including by asserting claims for breach of and interference with the employment contract.

Finally, the *Garcia* court did not explain how Garcia’s Labor Code claims against [the non-signatory client-employer] actually relied on the substantive terms of his employment agreement with [the signatory staffing agency]. The court observed that “Garcia’s claims

against [the client-employer] are rooted in his employment relationship with [the staffing agency],” but that is not a legally sufficient basis for equitable estoppel absent actual reliance on the terms of the contract containing the arbitration agreement to establish liability. The court generally described Garcia’s claims as being “for violations of the Labor Code and unfair business practices pertaining to payment of wages during his assignment with [the client-employer].” Although these statutory claims may have been rooted in Garcia’s employment relationship with [the staffing agency], that does not explain how they relied on the terms of his employment contract with [the staffing agency] as a basis for imposing liability against [the client-employer]. (See *Elijahjuan v. Superior Court* (2012) 210 Cal.App.4th 15, 23, 147 Cal.Rptr.3d 857 [“petitioners’ rights under the Labor Code are distinct from their contractual rights . . .”].)

(*Soltero, supra*, 102 Cal.App.5th at pp. 895-897, internal quotes & most internal citations omitted.) Accordingly, *Soltero* “decline[d] to follow *Garcia*’s equitable estoppel holding.” (*Id.* at p. 897.)

Importantly, the *Soltero* court went on to state that “even assuming that *Garcia* correctly applied the equitable estoppel doctrine, it is distinguishable because *Soltero* is not suing both [the client-employer and staffing agency defendants] on a joint employer theory. Instead, she is only suing the nonsignatory [client-employer].” (*Id.*) Accordingly, “*Soltero* is not trying to have it both ways because she has forgone any claims against [the signatory staffing agency] and opted to litigate her claims in court only against [the client-employer], which is not a party to the arbitration agreement. She is entitled to make this choice. In these circumstances, there is nothing unfair about applying to [the non-signatory] the usual requirement that you must be a party to a contract to enforce it.” (*Id.* at pp. 897-898.) Therefore, the *Soltero* court affirmed the trial court’s denial of the non-signatory client-employer’s motion to compel arbitration. (*Id.* at p. 890.)

Most recently, in *Gonzalez*, the Second District, Division 1 declined to follow *Soltero* and instead followed *Garcia* where the plaintiff sued both signatory and non-signatory entities and “[t]he only possible basis for [plaintiff]’s Labor Code claims against the [non-signatory defendants] is his theory that they were *joint* employers” as it was “undisputed that only [the signatory defendant] employed [plaintiff].” (*Gonzalez, supra*, 107 Cal.App.5th at pp. 115-116, 122-123, 126-128.) The *Gonzalez* court criticized the *Soltero* court for implying that “a complaint must expressly reference an agreement for the plaintiff’s claims to be intertwined with the underlying contractual obligation” because “[n]o authority or principle supports either the limitation or encouragement of misleading artful pleading.” (*Id.* at pp. 126-127.) The *Gonzalez* court held that “claims against a joint employer are intertwined with the substantive terms of an agreement with the direct employer because a joint employer’s obligations flow from those of the direct employer.” (*Id.* at p. 128.)

The *Gonzalez* court also found it relevant that in *Gonzalez*, the plaintiff employee did not make “a strategic choice to forgo suing the signatory” but

instead sued both the signatory and non-signatory joint employers in the same suit, thus making it “unfair for a signatory to an employment agreement to avoid arbitration by suing nonsignatories for claims that are based on the same facts and are inherently inseparable from arbitrable claims deriving from the agreement. Gonzalez obtained the benefit of employment from his agreement with [the signatory employer]. That benefit came with a limitation—his claims against his employer could only be arbitrated. It would be unfair for him to enjoy that benefit while avoiding the limitation.” (*Id.* at p. 129.)

Here, given that Plaintiff sued both Workway and CBC together in the same suit and specifically alleged that they were “joint employers,” *Garcia* and *Gonzalez* are more applicable than *Soltero*. Therefore, the Court concludes that under *Garcia* and *Gonzalez*, Plaintiff’s claims against Workway must be arbitrated under CBC’s arbitration agreement made applicable to Workway under the principles of equitable estoppel.

4. Unconscionability

Accordingly, Plaintiff next contends that even if the Court were inclined to compel arbitration of Plaintiff’s claims against Workway based on equitable estoppel principles applicable to the CBC arbitration agreement, the Court may not enforce the CBC arbitration agreement because it is unconscionable when read together with the Workway arbitration agreement, which includes a confidentiality provision requiring that “any . . . arbitration of a Covered Claim shall be kept confidential.”

The Court previously ruled that CBC’s arbitration agreement is not unconscionable. (ROA #71.) The Court also previously ruled that Workway’s separate arbitration agreement was unconscionable in part because of the cited confidentiality provision. (ROA #74.)

Plaintiff essentially contends that the Court must read the CBC agreement together with the Workway agreement under Civil Code section 1642, and “[i]f this Court determines that all claims alleged pertaining to violations suffered while working at Defendant CBC’s facility are part of the same employment contract Plaintiff had with Workway,” then “the Court must reevaluate the substantive unconscionability of the language of the CBC arbitration provisions in combination with Defendant Workway’s employment contract, including the effect of the confidentiality provision” found therein. (ROA #95, pp. 9-11.)

Plaintiff’s argument lacks merit. First, the Court’s ruling on equitable estoppel is based upon the Court’s finding that Plaintiff’s claims against Workway are governed by Plaintiff’s employment/arbitration agreement with CBC. (See *Garcia*, *supra*, 11 Cal.App.5th at p. 787 [all of [plaintiff]’s claims are intimately founded in and intertwined with his employment relationship with [the signatory], which is governed by the employment agreement compelling arbitration”].) Such a determination is not the same as “determin[ing] that all claims alleged pertaining to violations suffered while working at Defendant CBC’s facility are part of the same *employment contract Plaintiff had with Workway*.” (Opp. at p. 10, emphasis added.)

		Second, because the Court’s application of equitable estoppel is based on the <i>CBC</i> arbitration agreement and not any part of the <i>Workway</i> arbitration agreement, it does not follow that the Court must also consider the terms of the <i>Workway</i> arbitration agreement in determining whether the <i>CBC</i> arbitration agreement is enforceable. Plaintiff generally contends that Civil Code section 1642 requires the court to construe together “[s]everal contracts relating to the same matters, between the same parties, and made as parts of substantially one transaction.” (Opp., p. 9.) However, section 1642 has no applicability where the relevant “agreements were separately negotiated . . . between [plaintiff] and different entities,” and the agreements were executed at different times. (<i>Parker v. McCaw</i> (2005) 125 Cal.App.4th 1494, 1507-1508.) Therefore, the Court declines to read the CBC arbitration agreement together with the Workway arbitration agreement and declines to import the confidentiality provision from the Workway agreement into the CBC arbitration agreement. Accordingly, the CBC arbitration agreement remains enforceable and not unconscionable based upon the reasons articulated in the Court’s 1/22/2026 order granting CBC’s motion to compel arbitration. (ROA #71.) In sum, the Court finds that the CBC arbitration is enforceable, is not unconscionable, and is applicable to Plaintiff’s claims against Workway under equitable estoppel principles because Plaintiff alleges that CBC and Workway are joint employers. Plaintiff is therefore ORDERED to arbitrate her individual claims against Workway, and her class claims against Workway are hereby DISMISSED. Plaintiff’s case against Workway is otherwise STAYED until the arbitration is had pursuant to Code of Civil Procedure section 1281.4. Moving party shall give notice.
107	Padilla vs. Connect Staffing Inc. 2025-01524286	1.Motion to Compel Arbitration 2. Joinder 3. Case Management Conference CONTINUED PER STIP